

Adalida Baca

POLS 316

Final Exam

The bill presented is likely to be unconstitutional. However, the situation is dire, and something needs to be done. Based on my analysis, I recommend that the bill either be outright rejected, or, at the very least, subject to a major revision. The bill, as it is, is too vague, and has the potential to lead to long-term legal and economic problems. Detailed analysis of the bill should be of utmost importance before it is signed into law. Of primary concern is government entanglement with religion, and violation of Due Process. While the bill may be better than simply allowing the education system to run out of funding and collapse, great care must be taken.

When examining a possible violation of the establishment clause in this situation, the first pertinent case to examine is *Everson v. Board of Education* (*Everson v. Board of Education*, 330 U.S. 1). A key similarity with the scenario is the use of government resources to assist people attending private religious schools (*Everson v. Board of Education*, 330 U.S. 1). In *Everson v. Board of Education*, it was ruled by the United States Supreme Court that it is permissible to use taxpayer funds to supply transportation for private school (*Everson v. Board of Education*, 330 U.S. 1). This similarity is relevant because of the underlying principle at stake: the benefit of the children (*Everson v. Board of Education*, 330 U.S. 7). In a rapidly growing global economy with increasingly complex problems, education is necessary now more than ever. In conjunction with this underlying premise from *Everson v. Board of Education*, we can apply the Lemon Test (*Lemon v. Kurtzman*, 403 U.S. 612).

The Lemon Test is appropriate here because it provides a good means for understanding how the proposed actions articulate with the Establishment Clause. *Lemon v. Kurtzman* is also a particularly relevant case because it also involves government involvement in private schools. The action of abolishing public schools and maintaining the statute that K-12 schoolchildren must attend private schools has a clear secular purpose: education. The primary effect also is not

to advance or inhibit religion. The reason for this claim is the ephemeral nature of the primarily religious school system – as demand for private education grows, secular private schools are anticipated to grow as well. However, this growth is difficult to predict, and if secular schools do not gain students and growth as anticipated, the statute abolishing public schools would likely expand religion substantially. Finally, the Lemon Test requires that we avoid excessive “government entanglement” (*Lemon v. Kurtzman*, 403 U.S. 613) with religion. Passing this test is dubious at best, due to the monitoring needed to ensure that students are not “subject to too much religious instruction.” This is not clearly defined, and depending on how this is scoped and enforced, can certainly involve a lot of entanglement between government and religion. A government entity would be required to determine where to draw that line, and this is likely to require substantial involvement.

When considering the Free Exercise Clause, one key point to consider is the requirement that religious schools accept new students regardless of religion, when they may not have done so before. This limits the ability of religious institutions to create accredited private schools that are exclusive to their faith. A good start for evaluating this limitation is the Sherbert Test. The first prong of the Sherbert test is whether the government action pressured an individual or group to “forgo [a] practice” (*Sherbert v. Verner*, 374 U.S. 404), which this statute clearly does. This compels us to evaluate the second prong, which itself has two prongs. The first prong is that there is a “compelling state interest” (*Sherbert v. Verner*, 374 U.S. 406), which there is in this case. As in *Everson v. Board of Education*, the well-being of the children is a compelling interest (*Everson v. Board of Education*, 330 U.S. 7). The final prong of the Sherbert test is that there are “no alternative forms of regulation” (*Sherbert v. Verner*, 374 U.S. 407) that would achieve the same interests. This is much more difficult to determine. The opponents of the proposed bill posit public education for all as a suitable alternative. It is difficult to determine if this is a feasible alternative, however, the bill is accompanied with “tax cuts” that have no further explanation. If it is reasonable to forgo these tax cuts and sponsor public education, then this fails the Sherbert Test and there is compelling reason to believe this bill violates the Free Exercise Clause. Otherwise, if no reasonable alternative can be provided, the bill passes the Sherbert Test. Passing the Sherbert Test is not a guarantee that the bill does not violate the Free Exercise Clause,

however, it is a good heuristic for understanding the conditions under which the bill would violate the Free Exercise Clause.

When examining the abridgement of free speech, care must be exercised, as, for the proposed statute to be constitutionally permissible, we must maintain its compliance with the Establishment Clause and Free Exercise Clause as mentioned hereinabove. In addition to this, as school will be compulsory for all children of appropriate age, and subsidized by the government as necessary, some legal precedent may take effect. One such case to consider is *Engel v. Vitale*. In *Engel v. Vitale*, the United States Supreme Court ruled that the state cannot hold prayer in public school, even if the prayer is not affiliated with any single religion or “nondenominational” (*Engel v. Vitale*, 370 U.S. 430). Furthermore, this practice is impermissible even if students are permitted to remain silent or even leave the room during the prayer (*Engel v. Vitale*, 370 U.S. 430). What, then, if religious schools now open with a prayer? Students will either be subject to this prayer, or the school must be forced to stop opening with it. This leads to a paradox – either the Establishment Clause must be violated, or free speech must be abridged. The statute has a provision for how such situations can be mitigated by the Department of Education and its newfound mediation powers. Given the complexity involved in navigating this tight legal corridor between protecting free speech and compliance with the Establishment Clause, this is likely to lead to a high degree of government entanglement with religion. The statute cannot be passed in good faith without a resolution to these issues, as they will almost certainly show up in court. While our federal judges may wish to avoid acting as legislators, refusal to act on these issues will defer them back to themselves in the future.

With regards to the 14th Amendment, before looking at the right to education, let us take a moment to examine Due Process with regards to the religious education institution. In *Sherbert v. Verner*, the Due Process Clause is said to protect against “arbitrary governmental action” (*Sherbert v. Verner*, 374 U.S. 405). Allowing the Department of Education to intervene in a religious school and to “mediate” when “someone thinks that a student is being subject to too much religious instruction” is arguably “arbitrary governmental action.” If this mediation is legally binding, what safeguards are in place to protect due process? With the initial proposal, it appears that the government is permitted to interfere with the operations of a private, religious

school, without any due process, based on something that “someone thinks.” Without a proper framework that can be overseen by the courts in a scalable manner, this statute will end up failing to uphold due process.

The United States Constitution does not explicitly grant a right to education. Even if we cannot find any reason to believe that a right to education should be granted, based on the 14th Amendment or otherwise, this is not a supporting point for this statute. The reason this is not a useful point to support this statute is because the validity of this law is predicated upon a serious need, dare we say a “compelling interest” (*Sherbert v. Verner*, 374 U.S. 406) so the government may risk entanglement with religion. The “compelling interest” at hand is widespread education. If proponents of the bill state that “multi-billion dollar expense” cannot be justified, then why can we justify a bill that has the potential to create endless complication in the name of education? It can also be argued on this basis that the people of New Mexico cannot be forced to endure a potential incursion onto our religious freedoms in the name of education, as it is not a guaranteed right. If the case hinges on this point, the bill should be struck down, and the public education system replaced with nothing. Money is not the only type of expense that can be incurred here.

Opponents of the bill argued the opposite point, namely, that education is now an “inalienable human right.” If we assume this to be true, we can use this point to oppose the bill if and only if an alternative that promotes education for all can be supported. If no alternative exists, then this point is not useful for opposing the bill. If education is an inalienable right, then we must support it, even if the only means of supporting it is passing a controversial statute like the one at hand. In fact, this also makes a case for the government’s “compelling interest” to help this bill pass the Sherbert Test if some religious practices must be curtailed. While there may be further constitutional analysis to be conducted on whether the United States Constitution protects education for all, this analysis is only useful if education can be provided by means outside the proposed statute.

As we cannot determine with the given information if an alternative exists, we should examine both cases. Let us thereby assume that some alternative means of re-establishing public education exists. Does this statute then violate “a child’s right to a public education”? For the

sake of analysis, let us assume that the quality of education that a child receives from a private, possibly religious school is comparable to that the child would receive in a public school. What rights are then violated? The concerned parties argue that they may be financially or academically denied access to suitable education and that their children will end up going to substandard schools that are “set up just to take their money.” To base a serious argument on this claim would require some evidence that such a system would exist. While private schools do exist that charge fees and have admissions tests that would exclude students, what evidence is there for the inadequate schools? Without evidence, or at least some compelling prediction that the system would exist in the manner presented, this is a weak claim. It’s possible that the more accessible private schools would be of comparable or even better quality than the current public schools. This is even more likely to be the case due to funding cuts and issues with current public schools. If this claim is to be presented at all, it should be backed up with examples and data.

Another quandary to be examined in this is the financial aid system. While this helps allay concerns about access to education for low-income families, this raises a question regarding the Establishment Clause. In *Lemon v. Kurtzman*, it was ruled that government reimbursement to pay salaries of instructors at religious schools is impermissible (*Lemon v. Kurtzman*, 403 U.S. 603). The use of this financial aid is not specified, and it is likely that much of it will end up paying salaries for instructors at religious schools. As in *Lemon v. Kurtzman*, this is likely to be characterized as “excessive entanglement between government and religion” (*Lemon v. Kurtzman*, 403 U.S. 614). A thorough inspection of the allocation of financial aid funds must be conducted before passing this bill. If the funding is to be used for salaries, there is a compelling case to rule the bill unconstitutional as it violates the Establishment Clause. If this funding is not to be used for salaries, this raises two major questions. First, how can we know what the funding is used for? All we know is that “the State sends a check to the school.” Monitoring the use of funds further than that is more government entanglement with religion, which is a problem. The second question, even if we know that the funds will not be used to pay religious instructors, is are the funds even useful? Will financial aid reimbursements plus private tuition be enough to cover all the costs at a private school? To determine this, we would need to know what percentage of funds are spent on payroll at each school, as well as what percentage of funds will

come from financial aid. Finally, even if we can ensure that no financial aid money is spent on instructor salaries, is this enough to not violate the establishment clause? Private schools are still permitted to display religious statues. What if payroll is funded entirely by private tuition, then public funds end up building a religious statue? This is almost certainly in violation of the Establishment Clause. For the financial aid provisions in the bill to comply with the Establishment Clause will require deep analysis, and even that may be inadequate.

Financial aid may also violate the Free Exercise Clause implicitly. The conditions under which a school is selected to be given funds is unclear and is almost certainly subject to compliance with a set of rules. As we do not know how much funding will come from financial aid, we do not know its impact on private schools. Private schools are businesses, and, while they do not necessarily have to be profitable, they do at least have to make enough money to pay all employees, taxes, and utilities. If a school relies on financial aid, it may be compelled to follow rules that impose burdens upon the school. *Burwell v. Hobby Lobby Stores, Inc.* sets a precedent that exempts “closely held for-profit corporations” (*Burwell v. Hobby Lobby Stores, Inc.*, 573 U.S.) from regulations if there is a religious reason for the exemption, and there is a less restrictive, alternative way to impose a regulation. If financial aid requires compliance with a set of rules that conflicts with any religion, any school that is affiliated with that religion will be at a disadvantage. This may lead to religious schools abridging their own practices, which is a risk for a Free Exercise Clause violation.

Even independently of financial aid, there is yet more risk with both the Establishment Clause and the Free Exercise Clause. In *School District v. Schempp*, the primary reason for ruling school-sponsored Bible reading unconstitutional was the Establishment Clause (*School Dist. of Abington Tp. v. Schempp*, 374 U.S. 205). If attending a private school becomes mandatory, then the Establishment Clause is a point of contention at any school that sponsors reading the Bible. A solution to this would be to curtail this practice, which risks violating the Free Exercise clause. Bible-reading is not the only activity that is subject to this conundrum. Any religious activity that would infringe upon the Establishment Clause if it were mandatory for all students is likely to become a point of contention. Once the point is raised, it is unlikely that there will be a good solution for this, as any solution prohibiting an action that violates the

Establishment Clause now runs the risk of violating the Free Exercise Clause. Using religious private schools to power the statewide education system will always run this risk. A thorough analysis of this problem must be conducted before allowing this bill to pass.

One case that notably favors the way this bill is presented is *Town of Greece v. Galloway*. In *Town of Greece v. Galloway*, in contrast to *Engel v. Vitale*, the Town of Greece is permitted to open each legislative session with a prayer (*Town of Greece v. Galloway*, 572 U.S.). Like *Town of Greece v. Galloway*, the religious teachings taught in religious private schools do not “coerce[] participation by nonadherents” and “comport[] with [the schools’] tradition[s]” (*Town of Greece v. Galloway*, 572 U.S.). This problem is solved in the bill by “sequestering” students who do not wish to receive religious education, so that they may receive secular education only.

Furthermore, the bill does not favor any religion over another, and only relies on religious institutions as these institutions hold 85% of the current school facilities. “Sequestering” students who do not adhere to the religion of the school that the student attends may raise other problems, notably problems with the Equal Protection Clause. However, analysis of these issues is outside the scope of this analysis, and we may consider such a solution to overall be considerable.

Town of Greece v. Galloway has another relevant opinion in it. Specifically, the opinion warns that legislatures and courts should not “act as supervisors and censors of religious speech” (*Town of Greece v. Galloway*, 572 U.S.). This runs sharply in contrast with the ability of the Department of Education to “mediate” if a student is “being subject to too much religious instruction.” If a legislature or court cannot supervise or censor religious speech, why is the Department of Education permitted such authority? While this doesn’t necessarily make the bill unconstitutional, it can seriously hamper the Department of Education’s objective. The lack of this mediation power due to the precedent set in *Town of Greece v. Galloway* may make supporters and opponents of the bill change their positions, as it changes the nature of the bill. Without this power, by what means shall we decide if a student is receiving too much religious instruction? This opens a new venue of argument for asserting that the bill violates the Establishment Clause of the First Amendment.

Van Orden v. Perry also presents some relevant information, namely the presence of religious monuments being permitted on school grounds. These cannot be avoided by anyone

attending the school. As these are assumed to already exist, there is no problem here according to *Van Orden v. Perry* (*Van Orden v. Perry*, 545 U.S. 677). However, as the government is providing financial aid, it is difficult to ensure that government funds are not used for the maintenance and creation of new religious monuments. Also, one of the key points in *Van Orden v. Perry* was that the setting did not lend itself to “religious activity” (*Van Orden v. Perry*, 545 U.S. 677 Breyer). Some of the settings in religious schools will almost undoubtedly lend themselves to religious activity, possibly even being dedicated to religious ceremonies. How, then, can we determine their constitutionality? If this is unknown, then the bill cannot be properly supported by *Van Orden v. Perry*. If this is defined by the government, then the very act of creating the limits of which a religious monument on school grounds must abide by risks entanglement of government with religion.

Another topic of contention for this bill is the subject matter taught in religious schools. For example, some religious denominations believe in creationism, which can conflict with the subject matter taught in today’s public schools. In *Edwards v. Aguillard*, a Louisiana law requiring creation science to be taught alongside evolution was ruled unconstitutional due to violation of the Establishment Clause (*Edwards v. Aguillard*, 482 U.S. 579). This problem, in and of itself, is solved by the bill, as students who do not want to learn about such subjects may be “sequestered” and avoid such topics. The inverse case, however, is a problem. If a religious denomination disagrees with evolution science, how can we compel them to teach this? If we compel a school to teach such a subject, this clearly violates their right not to speak on something and additionally abridges their Free Exercise right to abstain from spreading such topics. On the other hand, if we do not compel schools to teach these topics, then the education received by many students is likely to be inadequate. Inadequate education was one of the primary concerns raised by opponents of the bill, albeit for economic and academic rather than religious reasons. This bill should not be passed if this problem cannot be solved.

San Antonio v. Rodriguez provides a clear framework by which to view accessibility to education. An opinion in the case states that “education is one of the most important services provided by the state” but education is not a “‘fundamental’ right or liberty” (*San Antonio Indep. Sch. Dist. v. Rodriguez*, 411 U.S. 2). This is helpful when applying both the *Lemon* and *Sherbert*

Tests, as it provides motivation for the state to pass such a bill. Furthermore, it absolves the state of any obligation to provide education. If funding is truly a priority for the state over education, it is well within the abilities of the legislature to trade a public school system for a cheaper system fueled by private schools. *San Antonio v. Rodriguez* also validates the highly detailed approach that we are embarking on, as it states that “strict scrutiny” is not appropriate for detailed and delicate matters (*San Antonio Indep. Sch. Dist. v. Rodriguez*, 411 U.S. 2). We cannot simply apply a series of general templates to this scenario and believe to have come to a correct conclusion. Rather, we must analyze all aspects of the scenario and make a carefully informed decision based on a detailed analysis.

While not directly a constitutional issue, a danger presented by this bill is favoritism toward religious adherents. Students that do not want to receive religious instruction are “sequestered” away during religious instruction. This can inhibit their ability to integrate with their peers and reduce their acceptance by school staff. Furthermore, what about co-curricular and extra-curricular activities? In this increasingly competitive educational landscape, these can make a major difference on college admissions and thereby career prospects. Long-term economic disadvantage due to being “sequestered” is a massive risk of this bill. This also runs the risk of violating the Establishment Clause, as students will be compelled not to take the option to become sequestered, and simply endure religious indoctrination. While we do not expect religious institutions to be a long-term solution, this runs the risk of either expanding religion or putting those resistant to religious indoctrination at a disadvantage.

When arguing against this bill, it is too narrow to present the alternative as establishing a state-sponsored public school system. It is enough to simply argue that this bill raises constitutional issues in and of itself, and we would do just as well to replace it with nothing. On the corollary, supporters of the bill cannot simply argue against a public school system. They must also argue that this is more valuable than having nothing in place. Nothing at all would be cheaper than providing financial aid for private school attendance. If the arguments supporting the bill are purely that the proposed system is cheaper than the existing system, those arguments are inadequate. This system must provably have value in and of itself. This is difficult to determine up front. A system for measuring the performance of the new school system under this

new bill must be established. This can start with some existing tools, such as standardized tests. However, the performance measurement system should be expanded to include things like college admission rates and workforce data. If the most “compelling interest” of the system is to further education, and not simply to save money, its effectiveness should be measured based on its outcomes. Furthermore, these measurements should be made public, so the new private school system can be compared with the old public school system. It’s possible that the new system may have better outcomes for less money, regardless of the religious and legal complexities that must be navigated to enact the new system.

Revisiting *Van Orden v. Perry*, a key difference should be highlighted here. While *Van Orden v. Perry* shared similarities with this case, there is a key contrast. The contrast here is that not only is the government allowing religious monuments, it is compelling some citizens to repeatedly enter proximity with religious monuments and fixtures. This compulsion inhibits the Free Exercise Clause for any individual who does not wish to be close to the artifacts of another religion. Not only are students forced to be close to these artifacts, but they may be “sequestered” away from religious classes. This disagrees with John Adams’ statement that we must abolish “all distinctions of preeminence amongst the different societies or communities of Christians” (Slides Regarding Religion, Slide 32). While this may not universally apply, it will apply at a small scale at each school that is religiously sponsored and contains a mixture of adherents and nonadherents to its sponsor religion.

Another dubious point in the argument for the bill is the idea that “reduction in taxes” somehow makes education more accessible. Without clarifying the nature of the tax reduction, the effect on accessibility of education is unknowable. This cannot be used as a point in favor of the proposed system without clarification. For example, if taxes are cut only for those who are already able to afford private school, then what impact do they have? Are these income tax cuts, capital gains tax cuts, estate tax cuts? Without this information, this is an unrelated assertion and is not helpful.

Also concerning the Free Exercise clause is the idea that the “core mission” of parochial schools is to propagate their respective faiths. Simply allowing the schools to keep statues on display and loosening the sequestering requirement to keeping “good faith” may not be nearly

enough to allow these schools to pursue their core missions. Some of these schools will probably grow by a multiple of their current students and may end up with a majority that are not of their faith. These schools may be forced to focus most of their resources on educating these students, distracting from their core mission and making it an afterthought to ensuring that these students receive a reasonable education. The current private school system has not been tested or measured to be capable of handling the massive influx of students. Expenses such as fire code analysis and other infrastructural upkeep were not discussed. While it still may be cheaper, the difference in cost may be much less than expected, and the overall impact may be to overwhelm religious schools. This would certainly cause the bill to fail the Lemon Test and highly increases its probability of being unconstitutional.

Overall, the risk of the bill being unconstitutional renders it dubious, at best. While taxpayers need not be forced to pay billions of dollars for a public education system, they also do not need to pay for the proposed system, which carries the additional risk of infringing upon rights. I recommend that this bill undergo a major revision, as well as detailed economic analysis. Without more clarity and data, the points supporting the bill are weak and nebulous. The consequences of passing such an act are longstanding and can affect many generations to come. It is much easier to keep an existing system in place than to create a new one. Once this bill is passed and this law goes into effect, it will be tough to revert to the previous situation, even once the financial constraints are lifted.

That said, the bill can have a great positive impact. Including non-religious students into religious communities is a great opportunity to promote community, diversity, and unity. It may well be the best shot we have at preserving a sane education system, given the dire financial situation. A timeframe should be imposed, along with benchmarks and performance metrics, to see how this system holds up. If the bill is passed, we should drive its longevity based purely on data. If the outcomes are good, even if the original premise of the bill seemed dubious, it should be continued and even expanded. The bill provides no provisions for analysis of its outcomes, which I recommend be included in its revision that passes.